

Yogesh Kumar Jain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 March 2017 · Writ-C No. 9518 of 2017 · **Writ disposed; EE directed to decide pending Para 6.5 complaint.**

HEADNOTE

A writ that in pith and substance challenges the validity or adjustment of an electricity bill is not the proper first forum. The consumer is to invoke Paragraph 6.5 of the U.P. Electricity Supply Code, 2005. Where a 6.5 complaint is already pending, the Executive Engineer is directed to take a final call on it; the writ is disposed of without deciding the bill.

FACTUAL SUMMARY

Yogesh Kumar Jain sought a writ directing the authority to decide his representation dated 27 January 2017. The respondents submitted that the grievance was in pith and substance a dispute over adjustment of an electricity bill, for which the remedy lay under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005. Counsel then stated that a Paragraph 6.5 complaint had already been filed. The application lay before the Executive Engineer, Electric Urban Distribution Division 1st, Pasimanchal Electric Distribution Corporation Ltd., Muzaffar Nagar.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-dispute-forum

HOLDING

Where a writ petition in pith and substance raises the validity or adjustment of an electricity bill, the consumer must invoke Paragraph 6.5 of the U.P. Electricity Supply Code, 2005, rather than High Court writ jurisdiction. If a Paragraph 6.5 complaint is already pending, the concerned Executive Engineer is to take a final call on that application. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ that in pith and substance challenges the validity or adjustment of an electricity bill is not the proper first forum. The consumer is to invoke Paragraph 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND ADJUSTMENT OF THE ELECTRICITY BILL

The Court did not examine the bill on merits and left the pending Paragraph 6.5 complaint to the Executive Engineer.

¶ 1